

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: September 09, 2026

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Official Pro Tempore Reporters | Superior Court of California | County of Orange \(occourts.org\)](#). For additional information regarding court reporter availability, please visit the court's website at [Language Access Interpreter Request | Superior Court of California | County of Orange \(occourts.org\)](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	2026-1539145 Palma vs. South Orange County Community College District	Defendants South Orange County Community College District (the "District"), Board of Trustees for the South Orange County Community College District, Bradley Fowler, Christine Lillja, and Letitia Clark have demurred to plaintiff William Palma's complaint and each of its 19 causes of action. [ROA # 71.] Defendant Dennis Walsh has separately demurred to Plaintiff's complaint. [ROA #95.] Both demurrers were served on Plaintiff, a self-represented litigant, by email. [See POS at ROA ## 71, 95.] A self-represented litigant may not be served by email unless he expressly consents. Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of

		electronic filing shall not be construed as express consent.” Code Civ. Proc. § 1010.6(c)(3); see CRC 2.251(b)(1). Nothing in the Court’s file establishes that Plaintiff expressly consented to electronic service. Accordingly, the hearing on the demurrers is continued to October 21, 2026, at 10:00 a.m., to allow Defendants to properly serve Plaintiff with the demurrers and notice of the continued hearing.
2.	2023-1311590 CEP America - California vs. Citrus Valley Physicians Group, A Medical Corporation	The unopposed motion of plaintiff CEP America – California dba Vituity for an order sealing court records is granted. [ROA #871.] Plaintiff moves, under Rule 2.550, for an order sealing the unredacted version of the transcript and Exhibit 352. The redactions include references to contracted reimbursement rates for emergency services that Vituity has negotiated with payors. Plaintiff contends these rates constitute “confidential business and proprietary information.” Plaintiff also seeks to protect the Independent Physician Association (IPA) identity as not germane to this action and because disclosure would prejudice the IPA and limit Plaintiff’s ability to contract in the future with other IPAs. [See Kuo Decl. (ROA #468), ¶ 4.] The court may order that a record be filed under seal only if it expressly finds facts that establish that: • there exists an overriding interest that overcomes the right of public access to the record; • the overriding interest supports sealing the record; • a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; • the proposed sealing is narrowly tailored; and • no less restrictive means exist to achieve the overriding interest. (Cal. R. Ct. Rule 2.550(d).) Here, Plaintiff has provided Kuo’s supporting declaration. The court finds this information qualifies for protection as a trade secret, and that the harm that could occur if this information were disclosed to Plaintiff’s competitors and others is clear. Further, Plaintiff complied with the rule by lodging unredacted copies and redacting only the information necessary to protect the trade secret information. Accordingly, the court finds Plaintiff has made the showing necessary for an order allowing Plaintiff to file the unredacted declaration (and accompanying exhibits) under seal. <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.

		Plaintiff shall give notice of the ruling.
3.	2025-1489617 Masaoka vs. ALHV, LLC	The unopposed motion of Plaintiff Mitsuko Masaoka, through her successor in interest, Arther Masaoka, to set aside the dismissal entered on May 27, 2026, is granted. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) provides for two types of relief. (<i>Leader v. Health Industries of Am., Inc.</i> (2001) 89 Cal. App. 4th 603, 615.) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (<i>Id.</i> at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (<i>Id.</i> at 616.) Arther Masaoka declares that he “cannot remember if I remembered the 5-27-2026 OSC hearing or not and if I attempted to make a virtual appearance on 5-27-2026 as my short term memory and my medications makes [sic] it difficult to remember short-term events.” (Masaoka Decl., ¶ 8.) Plaintiff additionally submitted a declaration from his former conservator, Ruby Hunter, who states that due to her own health issues, she frequently failed to calendar events for Masaoka in this action. (Hunter Decl., ¶¶ 2-3.) Mr. Masaoka also submits a letter from his doctor, O. M. Vesal, M.D., at Irvine Urgent Care. (Ex. B.) This letter states that “Due to the nature of his medical conditions and treatment regimen, he may have difficulty with calendaring obligations, attending scheduled proceedings, and appearing at court hearings at certain times.” (<i>Id.</i>) There is no opposition to this motion. Plaintiff moved promptly, filing it two weeks after the dismissal. Therefore, the Court grants the motion. Mr. Masaoka is reminded that he remains responsible for complying with applicable procedural rules, court orders, and hearing dates. Any future request for relief will be evaluated on its own facts under the applicable legal standards. Self-represented litigants are subject to the same rules as everyone else and are not to be treated any more leniently than represented parties. (See <i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984–985 (“self-representation is not a ground for exceptionally lenient treatment....the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation”); <i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 (self-represented litigants are

		entitled to same treatment as represented parties); <i>Lawrence v. Superior Court</i> (1988) 206 Cal.App.3d 611, 619 (“all litigants should be held to a generally applicable procedural rule, whether or not they are aware of it”).) A Case Management Conference is scheduled for October 22, 2026, in Department N18 at 9:00AM. The clerk will give notice.
4.	2024-1444220 Windisch vs. General Motors, LLC	<u>MOTION FOR JUDGMENT ON THE PLEADINGS</u> Defendant General Motors, LLC’s motion for judgment on the pleadings with respect to Plaintiffs’ fifth cause of action for fraudulent inducement by concealment in the Second Amended Complaint (“2AC”) is granted without leave to amend, subject to the discussion below concerning leave to amend.. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650; Code Civ. Proc. § 438(c)(1)(B)(ii).) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d).) Extrinsic matters may not be considered; the pleading under attack must be accepted as true. (<i>Id.</i>) Defendant argues that the fraud cause of action is barred by the three-year statute of limitations in Code Civ. Proc., § 338(d). Plaintiffs allege in the 2AC that they purchased the vehicle on March 28, 2015. (2AC, ¶ 6.) They claim that they “discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (2AC, ¶ 19.) Additionally, Plaintiffs state that the “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period....” (2AC, ¶ 25.) The express warranty period was a maximum of five years. (2AC, ¶ 10, Ex. A [express warranty terms].) Five years from March 28, 2015, was March 28, 2020. Even if the last defect within the warranty period manifested itself on March 28, 2020, giving rise to a suspicion of wrongdoing, three years from that date was March 28, 2023. (See <i>Cypress Semiconductor Corp. v. Superior Court</i> (2008) 163 Cal.App.4th 575, 585-586 [“plaintiff has reason to discover a

cause of action when he or she “has reason at least to suspect a factual basis for its elements”; accrual “does not wait” until liability becomes “a legal certainty”].) Plaintiffs did not file this action until December 3, 2024, more than 20 months beyond this deadline.

Where a complaint on its face appears time-barred, the plaintiff must affirmatively “plead around” the statute of limitations defense. (See, e.g., *Lewis v. Security-First Nat. Bank of Los Angeles* (1943) 58 Cal. App. 2d 827, 829 [The delayed discovery rule is not satisfied by the mere allegation that plaintiff did not discover the fraud prior to a designated date.]) Moreover, the plaintiff must plead those facts with particularity, as required for a fraud cause of action. (*Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227-228 [“plaintiff must state in his complaint when the discovery was made, the circumstances under which it was made, and facts to show that [he] is not at fault for not having made an earlier discovery, and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry.”])

As pleaded, the fifth cause of action appears time-barred by the applicable three-year statute of limitations for fraud. Plaintiffs do not allege what defects remained in the vehicle after the repair attempts or how Plaintiffs discovered those defects or any other facts to support delayed discovery. (See *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 [California law recognizes a general, rebuttable presumption that plaintiffs have knowledge of the wrongful cause of an injury; in order to rebut that presumption, “[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must *specifically plead facts* to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence”].) In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to show diligence; conclusory allegations will not withstand demurrer. (*Id.*)

Therefore, the motion is granted. This is the second time Defendant has challenged the sufficiency of Plaintiffs’ complaint. Plaintiffs did not oppose Defendant’s initial demurrer.

Unless Plaintiffs can articulate specific facts at the hearing that they can allege in support of this claim, leave to amend is denied.

MOTION TO STRIKE

Defendant General Motors, LLC’s motion to strike the punitive damages claim from Plaintiffs’ Second Amended Complaint (“2AC”) is denied.

		To the extent that Plaintiffs are claiming punitive damages in relation to the fraud cause of action, the motion is moot based on the above ruling on the motion for judgment on the pleadings. The motion is also untimely. Defendant itself cites the rule on this in its motion: “Under Code of Civil Procedure (“CCP”) section 435, ‘Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.’” (Motion, p. 2.) The Second Amended Complaint was filed on December 18, 2025. Defendant filed its answer on 2/10/26. (It was due earlier than this, 30 days after service of the 2AC pursuant to Code Civ. Proc., §435(b)(1).) The motion to strike was not filed until 3/26/26 and is therefore untimely. Defendant shall give notice of both rulings.
5.	2025-1457567 Plane Fetch Charter LLC vs. Firm Foundation Aviation, LLC	The motion to consolidate filed by Defendant/Cross-Complainant Firm Foundation Aviation, LLC and Cross-Complainant Timothy Lomakin is granted. When actions involving common questions of law or fact are pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or make such orders concerning proceedings. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications (i.e., different results because the actions are tried before different factfinders). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial at ¶ 12:340.) The Court finds there are common questions of fact or law such that consolidation would serve the ends of justice as well as judicial economy and efficiency. The motion is granted. The Court consolidates the following actions for all purposes: 1. Plane Fetch Charter LLC et al. v. Firm Foundation Aviation, LLC et al., case no. 30-2025-01457567; and 2. Plane Fetch LLC v. Firm Foundation Aviation, LLC, case no. 30-2025-01457617. The case with the lower number, ending in -7567, is the lead case. (Cal. R. Ct. Rule 3.350(b).)

		Moving parties shall give notice of the ruling.
6.	2025-1501947 Deckers Fine Gifts & Collectibles, Inc. vs. Pearson	Defendant Robert Enderle's ("Defendant Enderle") motion for attorney's fees and costs per CCP § 405.38 is denied. Enderle seeks \$13,283 in attorney fees based on his joinder in the successful motion to expunge the lis pendens. CCP section 405.38 provides: "The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) "The attorney fees provision in the lis pendens statutes originally was enacted to control misuse of the lis pendens procedure." (<i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1018, citation omitted.) "Even after the merits of the expungement motion are determined in favor of the moving party, there may nonetheless be facts and circumstances militating against imposing attorney fees and costs on the lis pendens claimant." (<i>Ibid.</i>) There is no dispute that the Court expunged the lis pendens Plaintiffs recorded on the Property, after granting the motion filed by Defendant Pearson, which Enderle had joined in. (See ROA 75, 144, 151.) The Court finds, however, that Plaintiffs acted with substantial justification in recording the lis pendens and opposing its expungement. The Court further finds that the circumstances discussed below would make the imposition of attorney's fees and costs unjust. While the Court ultimately granted the motion to expunge (which Defendant Enderle had joined in), it did so only after addressing difficult questions of fact and law. This case presented a dispute over whether Plaintiffs had entered into their lease with the owner of the property, or whether the lessor was merely a tenant, such that Plaintiffs were subtenants. The Court found the latter to be true based on the language in the Ground Lease. Nevertheless, the Ground Lease was <i>not</i> mentioned in Plaintiffs' lease agreement, and defendants had asserted an argument that Plaintiffs were on actual or constructive notice because the Ground Lease had been recorded in 1976 (which the Court did not find persuasive). It should also be emphasized that the Lease Agreement did not refer to the Landlord as a "sublessor" and Plaintiffs were told that the lease was "void" on a date over two years before the stated date of termination.

		Taken together, these circumstances provided an objectively reasonable basis in both law and fact for Plaintiffs to contend that their lease conferred a continuing right to possession and to oppose expungement of the lis pendens. Although the Court ultimately rejected Plaintiffs' position, that adverse determination does not establish that their position lacked substantial justification. Second, Defendant Enderle filed a "joinder" with a limited memorandum that was largely duplicative of the arguments made by Defendant Pearson, the party who brought the motion to expunge. (See ROA 75.) However, the relief sought is not the type of relief that is afforded on an individual basis. In other words, if the moving party, Defendant Pearson, was entitled to expunge the lien, then the relief granted would have applied to all persons affected by the lien, regardless of whether they "joined in" the original motion or filed a separate motion. Accordingly, the motion is denied. Plaintiffs shall give notice of the ruling.
7.	2025-1528928 Handy vs. Exodus Cry, Inc.	Defendant Exodus Cry, Inc.'s demurrer to plaintiff Bridget Handy's first amended complaint ("FAC") is sustained with 21 days' leave to amend. Specifically, Plaintiff is granted leave to file her proposed second amended complaint ("SAC"). In her opposition, Plaintiff tacitly concedes the merits of the demurrer to the FAC and seeks to file her proposed SAC. <u>Legal Standard</u> The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a)(1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code Civ. Proc. § 473(a)(1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576. Ordinarily, the court does not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. <i>Kittredge Sports Co. v. Superior Court (Marker,</i>

		<i>U.S.A.</i>) (1989) 213 Cal.App.3d 1045, 1048; Cal. Prac. Guide, <i>Civil Procedure before trial</i> (Rutter) 6:644. Grounds for demurrer or motion to strike are premature. <i>Id.</i> After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. <i>Id.</i> See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 (“[W]e believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”) (citing <i>Kittredge</i>). California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461. This liberal policy applies only so long as there is no prejudice to the opposing party. <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party are shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. <i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal.App.3d 304, 311. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 490; <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal.App.4th 168, 176; <i>Fisher v. Larsen</i> (1982) 138 Cal.App.3d 627, 649. <u>Discussion</u> This case began on December 1, 2025. Any delay by Plaintiff in alleging specific facts has been minimal. Nor has Defendant asserted prejudice from any delay. There is no trial date, and Defendant makes no claim that discovery will need to be redone. While Defendant objects that Plaintiff’s new physical injury claims are barred by workers’ compensation, that is only a portion of the SAC and can be addressed by demurrer to the SAC. Accordingly, Defendant’s demurrer is sustained and Plaintiff has leave to file her proposed SAC.
8.	2025-1481901 Global Axxis, LLC vs. Foldum Corporation	<i>The Court is tentatively inclined to sustain Defendants Foldum Corporation, Travis Zieman, James A. Shortill, Robert Reynolds, Aaron Zieman, and Niah Zieman’s demurrer to Plaintiff Global Axxis, LLC’s First Amended Complaint as to the second, third, and seventh causes of action, with leave to amend within 20 days, and</i>

		<i>overrule it as to the first, fourth, fifth, sixth, eighth, and ninth causes of action. Before ruling, the Court has several questions for counsel. Accordingly, no tentative ruling on the motion to strike is issued at this time.</i>
9.	2026-1552680 Lee Mitchell vs. Select Portfolio Servicing Inc.	<i>No tentative ruling is issued. The Court must address a service issue concerning Code of Civil Procedure section 1013a and California Rules of Court, rule 2.251(c)(3)(B).</i>